IGN Contract No 2020-Wise-01

CONSULTANCY CONTRACT

This contract is made on 1 August 2020 between the

Iodine Global Network
P.O. Box 51030
375 des Epinettes,
Ottawa, Ontario
Canada, K1E3E0

Hereinafter referred to as **IGN**; and

Aaron Wise
920 Leaping Brook Road
Lincolnton, NC 28092 USA
Tel: +258 85 0707157
Email: aaronbwise@gmail.com

Hereinafter referred to as the **Consultant.**

Re: Offer of Consultancy Contract
IGN Contract No 2020-Wise-01

TERMS OF REFERENCE

1) Background

Namibia is currently implementing its Food and Nutrition Security Policy and Implementation Action Plan 2019-2024. It includes several strategies to implement and strengthen mandatory fortification of staple foods and condiments. In order to design the most effective and feasible fortification programme for Namibia, UNICEF is seeking data on prevalence of micronutrient deficiencies, consumption data, including nutrient gap analysis, and data on food imports and domestic production. This data will also be useful for other strategies within the Food and Nutrition Security Policy and Implementation Action Plan

The Namibia Statistics Agency undertook the Household Income and Expenditure Survey 2015/16 between April 2015 to March 2016. It aimed to collect data on income and expenditure patterns of households and the sole source of information on income and expenditure in the country. It consisted of two questionnaires; the main questionnaire and the Daily Record Book or Diary. The main questionnaire included questions on whether or not the household had consumed key foods in the last week and where these foods came from and questions about crop production. The Daily Record Book recorded all expenditures and consumption for 7 days, organized by the UN Classification of Individual Consumption According to Purpose (COICOP) 2018. As such it is a 7-day consumption survey. UNICEF Namibia has access to the full data set from the NHIES.

The HIES data set has already been analyzed for basic production data and consumption of key foods within the last week. Government data on food imports and domestic production has been compiled. UNICEF is now seeking a consultant to undertake additional analysis of the HIES data set.

2) Services and Deliverables [Example]

The **Consultant** will be contracted to undertake additional analysis of the HIES data set as follows:

Major Tasks:

1. Comparison of cereal production data from MAWF/NAB and HIES to see to what extent they are similar or differ
2. Mapping of regional variations in cereal production in particular areas dependent upon mahangu (pearl millet) as opposed to wheat and maize using both MAWF/NAB and HIES data
3. Calculation of availability of wheat, maize and mahangu as average g/capita/day nationally, This data will be used in developing national fortification standards.
4. Analysis of Daily Record Book data to estimate average consumption (g/capita/day) for the foods shown in the Annex 1[1] with a breakdown by sources and sub-nationally (national, urban/rural, regions, ethno-linguistic group)
5. Analysis of Daily Record Book data to calculate average micronutrient intake using Namibia Food Composition Tables and South African Food Composition Tables as relevant, with breakdown by national, urban/rural, regions, ethno-linguistic group

Expected deliverables

- Report on comparison of cereal production data from MAWF/NAB and HIES, including relevant altered datasets and data-analysis files
- Cereal production data with regional breakdown
- Estimate of national g/c/day of wheat, maize and mahangu availability, including data-analysis files
- Estimates of consumption quantities of key foods (g/capita/day) for the foods shown in the Annex 1 with a breakdown by sources and sub-nationally (national, urban/rural, regions, ethno-linguistic group), including relevant altered datasets and data-analysis files
- Estimates of average micronutrient intake, with breakdown by national, urban/rural, regions, ethno-linguistic group), including relevant altered datasets and data-analysis files

The **Consultant** will be supported by the IGN Regional Coordinator for Southeast Asia and the Pacific and the UNICEF Nutrition Specialist for Namibia.

3) Schedule, Process and Administration

The specific assignment of the **Consultant** will be for a period of 9 working days between 1-31 August 2020, unless terminated by either Party in accordance with this contract. The term and scope of this contract may be extended by mutual written agreement.

4) Remuneration

The fee for this work will be US$3,600, upon receipt and approval by the Executive Director IGN of a detailed invoice which includes the days, report of progress achieved and copies of major

[1] Green highlights are priority foods for analysis as they are the most likely to be mandatorily fortified; blue highlights are other staple foods that could potentially be fortified if adequately consumed; peach highlights are processed foods that potentially contribute significantly to salt intake. Selection of foods to be included in the analysis to be determined based on estimated time and resources to undertake the analysis.

deliverables and output against each of the major tasks.

5) Tax

It is the **Consultant**'s responsibility to comply with the applicable personal tax laws in his country of domicile. The IGN is in no way responsible for any personal tax-related issues.

6) Banking Information

The **Consultant** will provide all pertinent banking information that will facilitate electronic payment to the **Consultant**'s account, as per Annex 1.

7) Execution

This Agreement may be executed in counterparts and such counterparts shall constitute a single instrument. Delivery of an executed counterpart of this Agreement by electronic means or electronic delivery in portable document format (".pdf") shall be equally effective as delivery of a manually delivered counterpart thereof.

The undersigned agree to all terms and conditions herein. This agreement becomes valid upon the signing of both parties.

Jonathan Gorstein Executive Director Iodine Global Network	**Aaron Wise** Consultant
Date: 27 July 2020	Date:

Annex 1: List of foods for Task 4

01.1	Food	
01.1.1	Cereals and cereal products (ND)	
01.1.1.1	Cereals (ND)	Dried grains of cereals, whether or not broken or precooked (steamed), but not further prepared. Includes all cereals e.g. wheat, rice (including parboiled) sorghum, barley, millet etc
01.1.1.2	Flour of cereals (ND)	Flour of cereals mentioned in Subclass 01.1.1.1 whether instant (precooked – steamed – or added with yeasts) or not.
01.1.1.3	Bread and bakery products (ND)	Includes bread and bread rolls, crisp bread, rusks, toasted bread, crackers, tortillas, injera etc
01.1.1.4	Breakfast cereals (ND)	Includes cornflakes, oatmeal and oat flakes, muesli, granola, puffed cereals etc, breakfast cereals with nuts or dried fruit
01.1.1.5	Macaroni, noodles, couscous and similar pasta products (ND)	Includes pasta uncooked, whether stuffed or not, and couscous, uncooked dumplings, ravioli and similar
01.1.1.9	Other cereal and grain mill products (ND)	Includes mixes and doughs for the preparation of bakery products, popcorn, granola bars, malt, malt extract, chips and crisps of cereals
01.1.2	Live animals, meat and other parts of slaughtered land animals (ND)	
01.1.2.3	Meat, dried, salted, in brine or smoked (ND)	Meat of all animals, dried, salted, in brine or smoked. Includes bacon, ham, salami
01.1.3	Fish and other seafood (ND)	
01.1.3.2	Fish, dried, salted, in brine or smoked (ND)	Fish dried, salted or in brine, smoked. Includes fish fillets and meat, dried, salted or in brine; smoked
01.1.3.5	Other seafood, dried, salted, in brine or smoked (ND)	Other seafood as defined in 01.1.3.4, dried, salted or in brine; smoked.
01.1.4	Milk, other dairy products and eggs (ND)	
01.1.4.1	Raw and whole milk (ND)	Raw and whole milk of cattle and buffaloes, sheep and goats, camels and other animals, fresh, pasteurized, sterilized (UHT) and reconstituted.
01.1.4.6	Yoghurt and similar products (ND)	Includes yoghurt; buttermilk and other fermented dairy products, curdled milk and cream. Kefir and other fermented or acidified milk and cream etc.
01.1.5	Oils and fats (ND)	
01.1.5.1	Vegetable oils (ND)	All oil of vegetable origin, including oil extracted from fruit, nuts and other crops.
01.1.5.2	Butter and other fats and oils derived from milk (ND)	Includes butter, butter oil, ghee
01.1.5.3	Margarine and similar preparations (ND)	Includes margarine, diet margarine
01.1.9	Ready-made food and other food products n.e.c. (ND)	
01.1.9.1	Ready-made food (ND)	Prepared food and meals that can be eaten as is or after heating but that do not require cooking. They contain mixed ingredients and can be fresh, frozen or dehydrated/instant. They can include sauces and dressing which, especially when food is fresh, can be provided in separate bags. Disposable forks, knives, spoons or chopsticks are sometimes also included in the package.
01.1.9.3	Salt, condiments and sauces (ND)	Includes salt, sauces, condiments and seasonings (mustard, mayonnaise, ketchup, soy sauce, etc.), vinegar.
01.1.9.4	Spices, culinary herbs and seeds (ND)	Includes pepper, pimento, ginger and other spices; parsley, rosemary, thyme and other culinary herbs; poppy seed, sesame seed, linseed and other seeds.
	Priority foods for analysis - most likely to be mandatorily fortified	
	Other staple foods that might be fortified if consumed in adequate amounts and by all population groups	
	Processed foods that potentially contribute to salt intake.	

Terms and Conditions

- **Travel Policy**

  The **Consultant** will only travel as is necessary to carry out the Services. Prior written approval from the IGN Executive Director is required to carry out any travel required. The IGN policy requires that the **Consultant** to travel in economy class by the most direct and economical routing. An estimated budget for travel needs to be approved in advance but the **Consultant** is able to pay for tickets against reimbursement. Reimbursement for all travel, accommodation and other expenses will require receipts and an itemized travel claim.

- **Liability and Insurance**

  The **Consultant** shall arrange for their own proper health and travel insurance and shall not hold IGN liable for costs incurred as a result of loss of property, illness or death. To the extent permitted by law, IGN agrees that the maximum aggregate liability of the **Consultant** in contract, tort (including negligence and breach of statutory duty) or otherwise for any breach of this contract shall in no circumstances exceed the lesser of a) the total funds actually received by the **Consultant**, or (b) USD 50,000.

- **Confidentiality**

  The **Consultant** shall not, during the terms of this Contract, and within five years after its expiration, disclose any proprietary information related to the Services, this Contract or the IGN's business or operation with the prior written consent of the IGN.

- **Intellectual Property**

  The **Consultant** retains ownership and/or control of any concepts, know-how, tools, frameworks and intellectual property which are proprietary to it and which were previously developed outside of this contract, but which may be used during or for the purposes of this contract.

  Design documents, specifications, reports and all relevant data such as maps, diagrams, plans, statistics and supporting records and materials compiled and prepared in the course of the Services (the "Intellectual Property Rights") shall be the property of the IGN. The **Consultant** may retail a copy thereof, provided that such copy shall not be used for purposes unrelated to the Contract without the approval of the IGN.

- **Global Access**

  You will conduct and manage the Project and the Funded Developments in a manner that ensures Global Access. Your Global Access commitments will survive the term of this Agreement. "*Funded Developments*" means the products, services, processes, technologies, materials, software, data, other innovations, and intellectual property resulting from the Project (including modifications, improvements, and further developments to Background Technology). "*Background Technology*" means any and all products, services, processes, technologies, materials, software, data, or other innovations, and intellectual property created by You or a third party prior to or outside of the Project used as part of the Project. "*Global Access*" means: (a) the knowledge and information gained from the Project will be promptly and broadly disseminated; and (b) the Funded Developments will be made available and accessible at an affordable price (i) to people most in need within developing countries.

- **Assignment, Conflict of Interest and Prohibited Activities**

The **Consultant** may not, except with the prior approval of the IGN, assign or transfer the Contract or any of the Services, nor may he/she engage any sub-**Consultant** to perform any part of the Services. The IGN's approval of the assignment or transfer of any part of the Contract, or of the engagement of any sub- **Consultant**, shall not relieve the **Consultant** of any of his obligations under the Contract. The **Consultant** shall not engage, directly or indirectly, in any other work, business or professional activities that may conflict with the performance of the Services. The **Consultant** warrants that to the best of his knowledge at the date of signing this Contract no conflict of interests exists. If during the course of this Contract, a conflict or risk of conflict of interest should arise, the **Consultant** will notify the IGN immediately in writing.

- **Anti-Corruption; Anti-Bribery**

The **Consultant** will not offer or provide money, gifts, or any other things of value directly or indirectly to anyone in order to improperly influence any act or decision relating to the Project, including by assisting any party to secure an improper advantage.

- **Lobbying and Electioneering Prohibition**

The **Consultant** may not use Grant Funds to influence the outcome of any election for public office or to carry on any voter registration drive. The **Consultant** acknowledges that the IGN has not earmarked Grant Funds to support lobbying activities or to otherwise support attempts to influence legislation. The **Consultant** agrees to comply with any national, state, local, or other lobbying, gift, and ethics rules applicable to the Project. The IGN is not retaining or employing the **Consultant** to engage in lobbying activities.

- **Publicity**

The **Consultant** must obtain IGN's prior written approval before: (a) issuing a press release or other public announcement regarding this grant; and (b) any other public use of the IGN name or logo. Please email your request to: ggizak@ign.org two weeks in advance to provide IGN with an opportunity to review and comment.

- **Termination**

1. The IGN may terminate this Agreement at any time by providing the **Consultant** with 15 days written notice, without any further obligation or compensation. In the event of termination, IGN shall pay the **Consultant** for the work performed and expenses incurred up to the date of termination.
2. The **Consultant** may terminate this Agreement on giving 15 days prior written notice of termination to IGN. During the 15-day notice period, the **Consultant** is required to continue providing the services outlined in this agreement. Upon the expiry of the notice period, or if the **Consultant** fails to serve a portion or all of the required working days with the notice period, the IGN's sole liability to the **Consultant** shall be to pay to the **Consultant** any compensation up to the last day on which services were performed.
3. The IGN shall have the right to terminate this Contract effective immediately in the event of any material default/breach by the **Consultant** of the terms and conditions of this Contract. In the event of any such termination, the IGN is not liable to the **Consultant** for any undelivered work and may request the repayment of any advance payments which have yet to be disbursed related to that work.
4. The **Consultant** agrees that upon any termination for whatever reason, the **Consultant** shall at once delivery or cause to be delivered to the IGN any books, documents, effects,

monies, securities or other property belonging to the IGN for which IGN is liable to others which are in possession, charge, control or custody of the **Consultant**.

5. The parties confirm that the notice provisions in this Agreement are valid and reasonable and fair and equitable. The parties agree that upon any termination of this Agreement in compliance with this Agreement, the payments made by the IGN in accordance with this Agreement shall satisfy all of the obligations that the IGN has to the **Consultant**, and that upon making of any such payments the **Consultant** shall not have any action, cause of action, claim or demand against the IGN or any person as a consequence of this Agreement.

- **Law Governing Contract**

The Contract shall be governed by the laws of Ontario and the laws of Canada applicable thereto.

- **Dispute Resolution**

Any dispute arising out of this Contract, which cannot be amicably settled between the parties, shall be referred to arbitration by a single arbitrator in Ontario, Canada in accordance with the *International Commercial Arbitration Act (Ontario).*

- **Compliance with Donor**

The **Consultant** agrees to comply with the terms stipulated by the administer of the grants for all related projects.

Annex 1 Banking Details

Bank name: Bank of America

Bank address: 100 North Tryon Street, Charlotte, NC, 28202, USA

Bank phone number: +1 800-432-1002

Account name: Aaron Wise

Account number: 003540425524

Currency (): USD ($)

ABA (routing) number: 081000032

SWIFT Code: BOFAUS3N